

Dispute Resolution Mechanisms for Addressing Contractual Issues

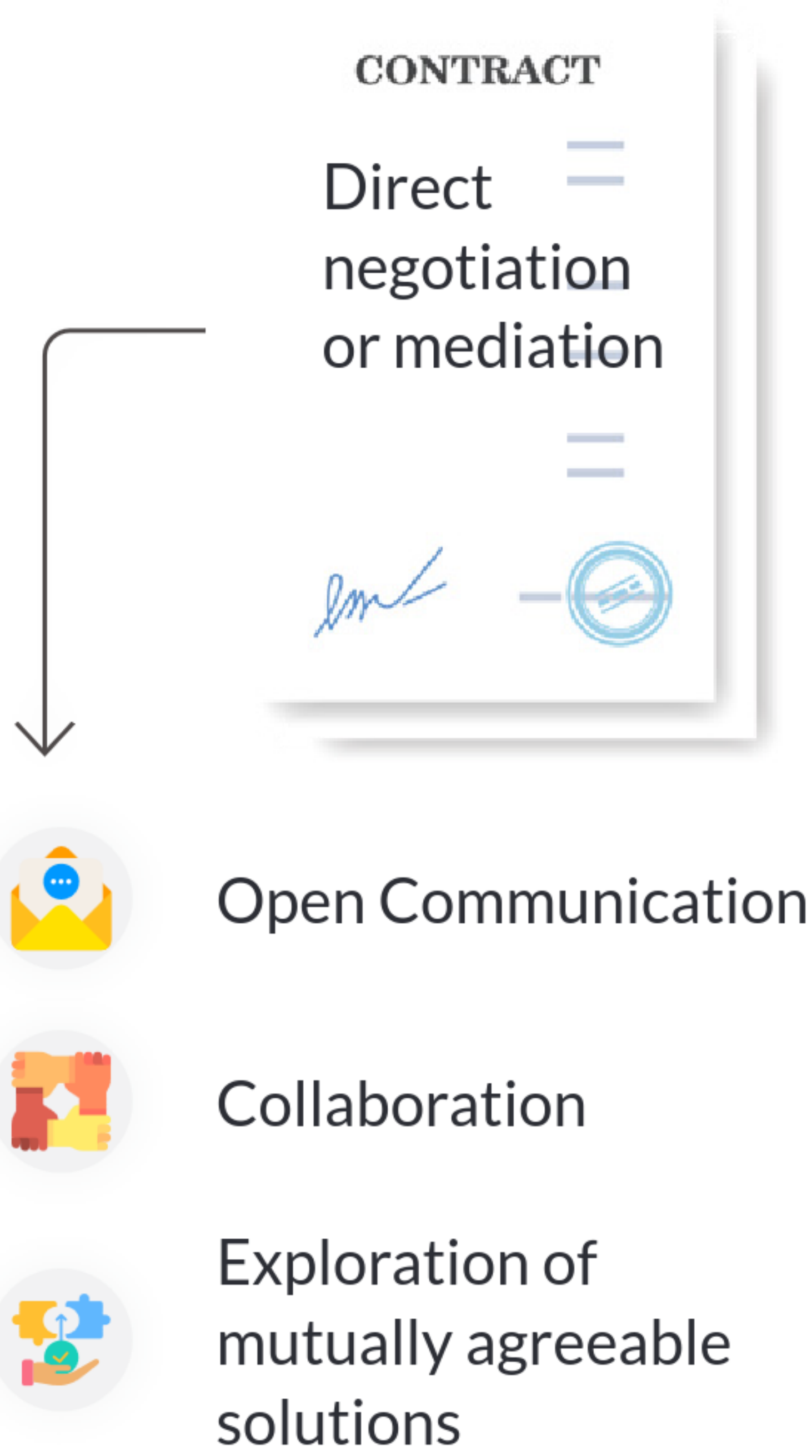
Despite best efforts, disputes or disagreements between consultants and clients may arise during an engagement. Having robust dispute resolution mechanisms can help address these issues effectively, minimise disruptions, and prevent escalation into costly legal battles.

Common dispute resolution mechanisms include:



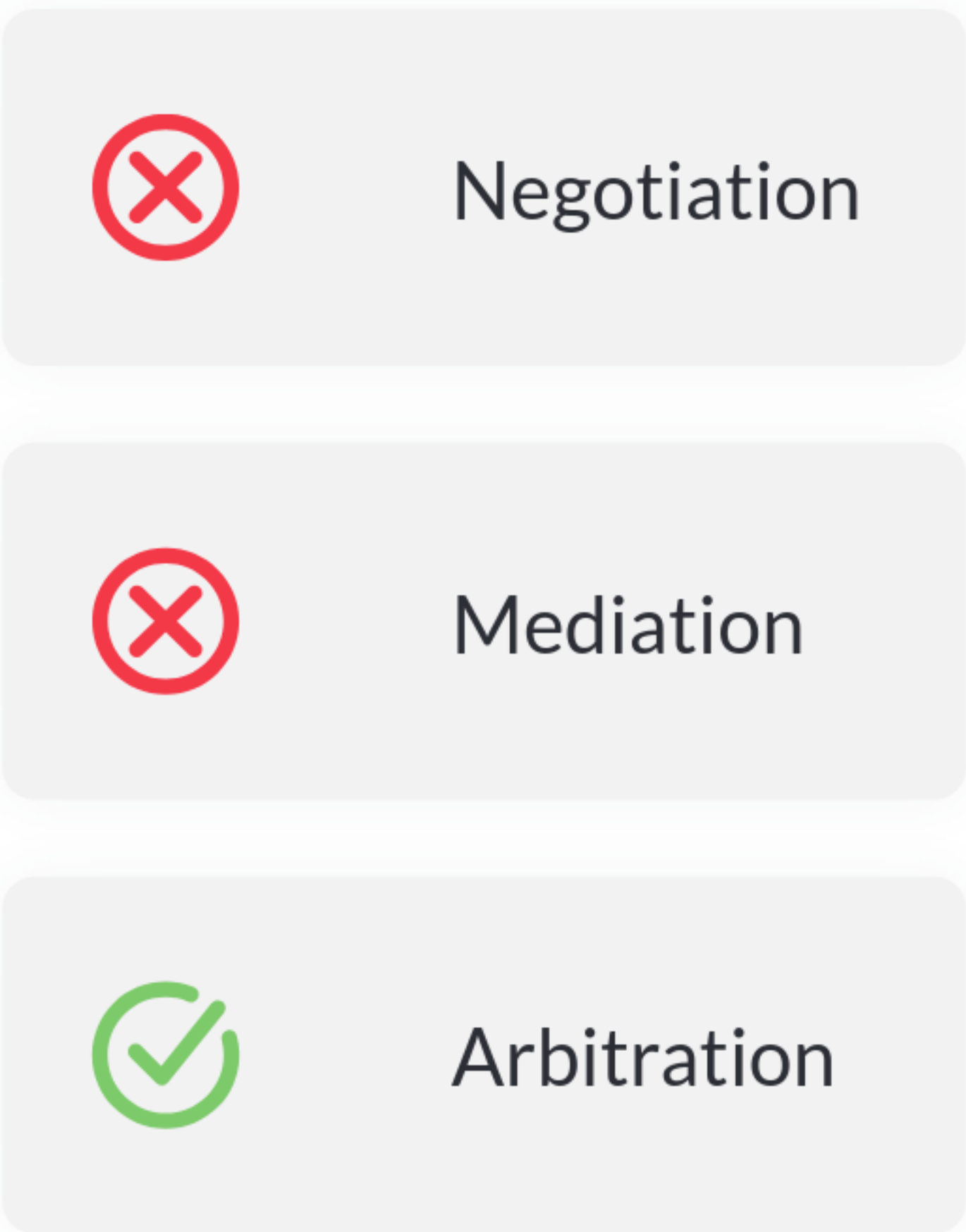
Negotiation and mediation

Many contracts include provisions for initially attempting to resolve disputes through direct negotiation or mediation between the parties. This approach encourages open communication, collaboration, and the exploration of mutually agreeable solutions.



Arbitration

In cases where negotiation or mediation fails, contracts may specify arbitration as the next step. Arbitration involves submitting the dispute to an impartial third-party arbitrator or panel, whose decision is typically binding and enforceable.



Litigation

Litigation may be the final option if all other dispute resolution mechanisms are exhausted or deemed inappropriate. Contracts should specify the governing laws and jurisdiction for any potential legal proceedings.

